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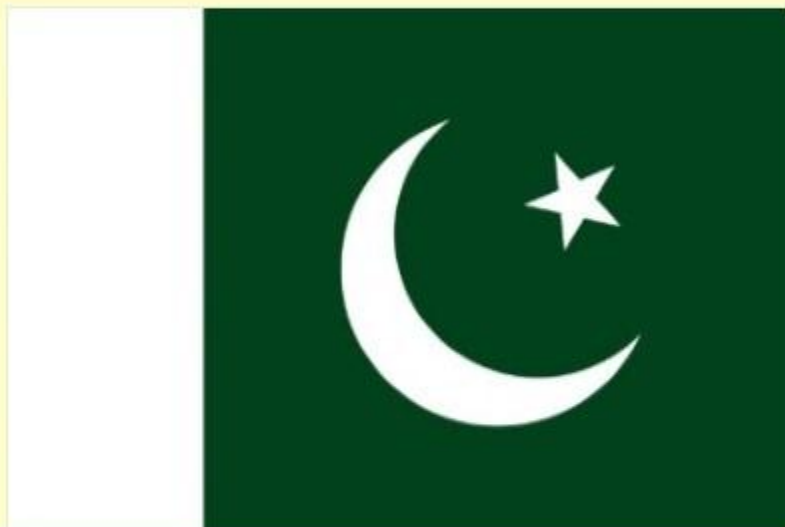
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NEWSPAPER

31st July, 2017

ITEM WISE EDITORIALS

31st WEEK



PAKISTAN AFFAIRS

UPSC CSE – GS II

GS II... INDIA AND ITS NEIGHBORHOOD- RELATIONS.



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NEWSPAPER EDITORIALS

... DISCUSSION

31st JULY, 2017

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Uncertainty ahead

Nawaz Sharif's disqualification could set up a spell of political instability in Pakistan

The disqualification of Prime Minister Nawaz Sharif from holding public office, by the Pakistan Supreme Court in the Panama Papers case, leaves a huge political vacuum in the country. This is the third time Mr. Sharif's premiership has been cut short. If his first two terms were ended by the country's powerful military, first forcing him to resign and then overthrowing his government in a coup, this time it was through a formal legal process. The Supreme Court invoked a controversial Article of the Constitution that requires politicians to be "honest" and "righteous". The court ruled that Mr. Sharif was dishonest in failing to disclose in his 2013 election nomination papers his association with a UAE-based company and therefore was unfit to continue in office. The court also referred money-laundering allegations against Mr. Sharif and his children to the National Accountability Bureau, the anti-corruption regulator. While Opposition politicians, especially the Tehreek-e-Insaf's Imran Khan who filed a petition in the Supreme Court against the Sharif family, have welcomed the ruling as an endorsement of accountability, there are some worrying legal and procedural questions about the Supreme Court's decision. For instance, should it have waited for the full investigation into the corruption allegations before disqualifying him?

At the practical level, the focus is on whether Mr. Sharif's exit will fuel political instability. A seasoned politician with immense popularity and experience in dealing with the military, he upheld his authority in his third term despite sustained pressure from the generals. There were occasional flashpoints, but the military largely refrained from showing its hand. It had chosen to exercise its powers over the executive indirectly, to avoid public disenchantment of the sort that undermined its image during the years of Pervez Musharraf's presidency. Over the last four years Pakistan has had a spell of relative economic stability, an easing of the electricity crisis and a drop in terror attacks. But now that Mr. Sharif is gone, it is not clear how the military will deal with any resultant political instability or executive frailty. The Pakistan Muslim League-Nawaz has quickly named Shabbaz Sharif, the former Prime Minister's

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Pakistan sticks to a sad tradition

Nawaz Sharif is clearly a flawed man but the manner of his removal from office is even more flawed



HUSAIN HAQQANI

The decision by Pakistan's Supreme Court to disqualify Prime Minister Nawaz Sharif reaffirms the iron law of Pakistani politics: a politician can amass wealth and engage in corruption only as long as he does not challenge the ascendancy of the country's powerful national security establishment. Although Mr. Sharif has ostensibly been disqualified over the so-called Panama Papers, which exposed holders of offshore bank accounts, the verdict against him has little to do with the revelations in the Panama Papers.

Mr. Sharif and his family have definitely expanded their assets several fold since his entry into politics more than three decades ago as a protégé of the Islamist military dictator, General Zia-ul-Haq, and the former chief of the notorious Inter-Services Intelligence (ISI). But he was not put on trial for corruption and convicted. Instead, the Supreme Court acted politically, as it often does, and created a Joint Investigation Team (JIT) that included military intelligence representatives. The JIT's job was ostensibly to uncover the trail of the Sharifs' wealth and the Supreme Court used the JIT's findings to determine that Mr. Sharif could no longer fulfil the constitutionally mandated qualifications for his office.

When he ended Martial Law, General Zia had added several provisions to Pakistan's Constitution, some of which related to moral qualifications for membership of parliament. Their purpose was to give the all-powerful national se-



curity establishment a constitutional instrument to control the political process even after the military's withdrawal from direct political intervention. Those provisions have finally been invoked to rid Pakistan of a meddling Prime Minister.

Articles of expediency

During the 1990s, civilian Prime Ministers who failed to toe the line in key policy areas could be dismissed by the President, who was always a reliable establishment figure. After three dismissals, twice of the army's bete noire Benazir Bhutto and once of Mr. Sharif, the civilians got rid of Article 58-2(b) of the Constitution that authorised the President to unilaterally dissolve Parliament and dismiss Prime Ministers. The absence of the establishment's safety valve paved the way for General Pervez Musharraf's military coup in 1999.

Aware that the 21st century is less conducive to direct military takeovers than preceding decades, Gen. Musharraf reintroduced the notion of presidential dismissal before sharing power with civilians again. The civilians dispensed with it again in a consensus constitutional package in 2008. Since then, Articles 62 and 63 of the Constitution, inserted by Zia and ironically kept alive with the support of Mr. Sharif and Pakistan's religious

parties, have been cited as the means whereby the establishment can keep politicians on the straight and narrow.

In its judgment disqualifying Mr. Sharif, the Supreme Court has found him in violation of Article 62 (1)(f) that demands that members of Parliament be "sagacious, righteous, non-profligate, honest and Ameen". The last of these, "Ameen", meaning 'the keeper of trust' is one of the attributes of Prophet Muhammad, which by definition is a hard standard to meet for any Muslim who deems the Prophet 'the most perfect' human being. Ordinary mortals can easily be found in violation of that noble standard.

By claiming the right to disqualify any elected representative of his/her office for not meeting such exacting standards of probity, the Pakistani Supreme Court has arrogated to itself the authority similar to that of Iran's Guardian Council, which vets all candidates for elective office. The Council routinely disqualifies politicians on grounds that they are not sufficiently dedicated to Islamic values.

Setting a precedent

The disqualification of Mr. Sharif sets the precedent for future judicial coups. That does not mean Mr. Sharif has not amassed wealth beyond explainable means or does not

have property across the world that might have been acquired through questionable transactions. But corruption must be dealt with by legal means, not on the say of rival politicians or intelligence operatives operating without being subject to laws of evidence.

If legally admissible evidence of corruption had existed, there would have been a trial, not direct intervention by the Supreme Court, which should only be the court of final appeal in criminal matters. So what is really going on? Pakistan is simply keeping its sad tradition that disallows politicians to ever be voted out of office by the voters who elected them to that office in the first place.

In the last seventy years, all Pakistani Prime Ministers have either been assassinated, dismissed or forced to resign by heads of state with military backing, or deposed in coups d'état. Mr. Sharif is the second Prime Minister, after Yousuf Raza Gilani, to be sent home by an activist Supreme Court amidst an orchestrated media furore. Ironically, Mr. Sharif was installed as Prime Minister in 1990 by the military in intrigue that was exposed decades later. That intrigue involved the army creating the multi-party alliance, Islami Jamhoori Ittehad (JI), through the ISI and funding Mr. Sharif and others with money taken from corrupt businessmen. At that time, the Pakistani establishment deemed Benazir Bhutto 'a security risk' over her avowed desire to change attitudes towards India and the rest of South Asia.

Mr. Sharif fell out of the army's favour when he decided to assert himself in the conduct of foreign and national security policy after becoming Prime Minister. He was ousted once by the President and a second time by the army chief in a coup. Elected for a third time, he has now been sent packing

through the Supreme Court. He is clearly a flawed man but the manner of his removal from office is even more flawed.

The India connection

During the Panama Papers saga, Mr. Sharif was accused in social media of being an Indian agent and rumours swirled of his alleged investments in India and 'secret partnerships' with Indian businessmen. This reveals the real cause of anxiety with him, which could not be rumours of corruption because that did not bother the establishment when it initially supported him.

The role Mr. Sharif played in the late 1980s, as the establishment's Car's Paw, has now been taken over by cricketer-turned politician, Imran Khan. There is no guarantee, however, that if Mr. Khan ever comes to power he would not meet a similar fate when he insists on making policy instead of being content with having office and implementing the establishment's prescriptions. Just like the QJHSI intrigue was fully uncovered decades later, we will probably find out details of the intrigue leading to Mr. Sharif's ouster several years later too.

Unfortunately, Mr. Sharif's ouster is unlikely to stem the tide of widespread corruption in Pakistan. It might also not be the end of Mr. Sharif, who could possibly win another election in his Punjab base. But the episode proves again that Pakistan is far from being a democracy where the law takes its course, institutions work within their specified spheres and elected leaders are voted in or out by the people.

Husain Haqqani, Director for South and Central Asia at the Hudson Institute in Washington DC, was Pakistan's Ambassador to the United States from 2006 to 2011

THE HINDU

Date : 31st July, 2017

UNCERTAINTY IN PAKISTAN



NEWS REPORT

- 1** The Pakistan Supreme Court disqualified Nawaz Sharif from holding public office, in the Panama Papers case.
- 2** This is the third time Mr. Sharif's premiership has been cut short.
- 3** In the first case, he was forced to resign and during the second time, his Government was overthrown by the country's powerful military.

WHAT ARE THE CONTENTIONS OF THE SUPREME COURT?



- 1 It invoked a controversial Article of the Constitution that requires politicians to be “honest” and “righteous”.
- 2 The Court ruled that Mr. Sharif was dishonest in failing to disclose in his 2013 election nomination papers, his association with a UAE-based company and therefore was unfit to continue in office.
- 3 It also referred money-laundering allegations against Mr. Sharif and his children.

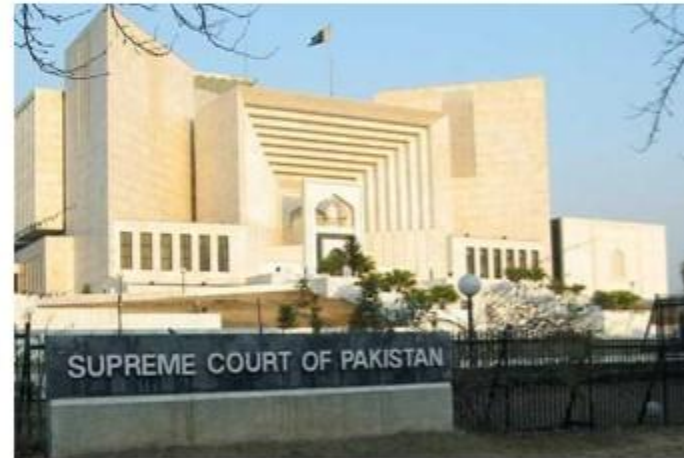


PAKISTAN

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ARE SUCH TYPE OF INCIDENCES REGULAR IN PAKISTAN POLITICS?

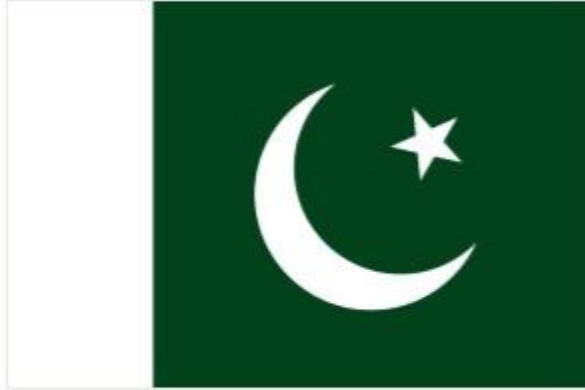
- 1** These types of incidences like Civilian Governments being subordinated to the military/Supreme Court are quite common in Pakistan.
- 2** Several Prime Ministers were thrown out midway in Pakistan.
- 3** Coup by military is also quite common.
- 4** The Supreme Court most of the times takes side with the military.
- 5** Many times India is not clear to whom it has to discuss on the terrorists issues.

Overall, Pakistan has no trust in democratic and judicial principles and it is a well-known fact.

SEE THE IRONY!



- 1** India and Pakistan were born on the same day.
- 2** India in spite of its diverse cultures, transformed into a vibrant democracy with the powers delineated between Judiciary, Executive and Legislative, but the Pakistan case is something different.
- 3** In cases involving terrorism, the Pakistan courts normally concede power to the military. Military courts dispense justice in such cases.
- 4** Several things concerning terrorism are within the portals of military and sometimes undertaken through its ISI.
- 5** It is also not clear for India, to whom the discussions have to start, whether it is with the army or the civilian government in case of terrorism related problems.



The episode proves again that Pakistan is far from being a democracy, where the law takes its course, institutions work within their respected spheres and elected leaders are voted in or out by the people.

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